Unit I

Tort = Civil Wrongs

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Compensations to the loss

Definition:

The word Tort is derived from the latin term "Tortum" - which means Twist

Tort means a civil wrong committed Against Individual (or) their properties it involves act ~~of omission~~ Ommission, that causes harm, Injuria Resulting in Legal liability for the responsible party and gives the Right of Compensation to the Injured Party

According to Salmond Peoples hone theory

Def:- In Section - Sec 2(m) of the Limitation act. 1963.

It is a civil ~~wrong~~ wrong for which the remedy is a Common Law action for the unliquidated damages and which is not exclusively the Breach of Contract (or) the Breach of trust (or) Other Obligations.

Intentions there but not clear

According to Winfield theory

The tortious liability arises from the Breach of duty fixed by the Law this duty is towards person generally and its breach is redressable by an action for unliquidated damages.

According to Fraser:

The Law of Torts is an infringement Of a right in remede of a private individual giving a Right of compansation ~~to~~ the ~~tortfeasor~~ (doer) Injured party

Essential elements of Torts

There are 3 essential elements of torts

(1) There must be some act or Omission on the Part of the dependent — Wrongful act

(2) The act or Omission Should be result in Legal damage (Injury) i.e violation of Legal right — Legal damage

(3) The act or Omission Should be the result of → legal remidy (compansation)

Wrongfull act:

A wrongful act is an unLawfull or unauthorised action that Interfere with another Rights or Interest causing harm or Injury.

The wrongful act is an act which is done without any lawful Justification. The act of the defendant becomes wrong act. When there is voilation of Legal right of Plaintiff or Other Person. thus in this torts the Plaintiff has to prove that his legal Rt have been Violated by the wrongful act of the defendant

eg: Trespass, Bike accident.

eg:- A commits an act of Trespass or published a statement defaming Plaintiff (Person, Institute)

or Wrongfully detains another person.

⇒ Similarly when there is a legal duty to do some act and a person fails to Perform that duty he can be made liable for that act or omission.

eg 1: If a Corporation which maintains a Public Park. fails to put Proper fencing to keep the Children away from a Poisionous tree and, Child Plucks. and eat the fruit of the Poisionous tree and Suffered. The Corporation would be liable for the Omission.

eg 2: The municipal Corporation having Control of a Clock tower in the heart of a City does not keep it in Proper repairs and the falling of the Same, Result in the Injuries of a no. of Persons. M. Corporation ↓ will be liable for its act/omission to take care in the action.

Types of wrongful act:

① Intentional Tort

① Assult → threating. Physical harm

② Battery → Physically contact without Consent.

③ Deformation → Spreading false Information.

④ Trespassing → encroachment

⑤ False imprisionment →

② Unintentional Torts.

① Car accident (Reckless of driving)

② Medical Malpractice: Surgical
~~Medical~~
Negligence

③ product liability.

④ Environmental Pollution: waste disposal.

Legal Remedies

The Law of Torts is said to be a development of the Maxim (Ubi Jus ibu remedium) which states that where there is a Right there is a Remedy

i/e when ever Legal Right is Violated that person whose Right has been infringed as remedy against the person who has violated it. the remedy is an action for unliquidated damages.

Legal Damage:

In Order to make a person liable of tort the plaintiff has to prove that there has been a legal damage caused to him has to prove. In other words unless there has been a violation of a Right there can be No action under Law of Torts.

In Case of Legal Right has been violated there are two Rules is expressed to understand the concept of Legal Damage

(i) Injuria Sine damnum

(ii) Damnum Sine Injuria.

Injuria - Violation of Legal Rights.

Sine - Without

Damnum + Damage

Case Laws:

① Ash by Vs White.

② Bhim Singh Vs State of J&K.

Case Laws 01:

Ashby Vs White

Voilation of Rt to vote

(326)

UK Constitutional Law.

Ashby - Citizen

White → Constable
Returning officer.

White claimed Ashby as Settled Inhabitant

Judgment:

① Voilation of a legal Right (Inj. Sine damj
Warrants remedy, even without damage.

② public officials are accountable for their actions.

③ exemplary damages can be awarded.

Bhim Singh Vs State of Jammu & Kashmir.

Injuria Sine Damnanum

This Maxim means Violation of Legal Rt without causing any damage or harm (or) Loss to the plaintiff.

They are some of the leading Cases which explains about Injuria Sine Damnum.

Ashby Vs White (1703) England

In this Case the plaintiff was Succes in his action against the dependent even though the dependent did not Caused any damage.

The Plaintiff was a qualified Voter of the parliamentary elections by the dependent A returning Officer. Wrongfully refused to take plaintiff Vote. No loss was Suffered by such refusal because the candidate for whom he wanted to vote won the election inspite of that, However it was held that the — White (dependent) liable

Case Law of Ashby V. White

This is an english case that established of Injuria Sine Damnum means violation of Legal Right without damages

facts:

- Ashby is a qualified voter, was prevented from voting In a Parliamentary election by White who is the returning officer to that election
- Ashby vote would not have changed the election output

Issue:

→ Whether Ashby had Right to Sue for being denied his Right to vote dispite no monitory loss.

Judgment of case

→ The Court held that Ashby had a Right to vote and their returning Office White action were unlawful act.

→ the Court awarded damages even though Ashby suffered no monitory Loss.

Key Priciples of the Case

① Injury to a persons Legal Right is actionable without monitoring damage (or) Loss.

② Right to vote _____ that must Be protected

③ Unlawful Act: by a public official must act Lawfull.

(Assignment)-I

Bhim Singh Vs State of Jammu & Kashmir

Damnum Sine Injuria

It means Damnum - Damages Sine - without; Injuria - violation of legal Right. It is a damage to another Person is not actionable in Law unless legal Rt of plantiff is Violated.

There are some of the leading Cases which explain about Damnum Sine Injuria. (DSI)

Case Law.

Gloucester Grammer School Vs Rival School Teach...

In this case the dependent - Rival School Teacher In Plantiff School there was some disputes and the dependent left the Plantiff School and started his own school. As dependent was famous amongest the Students the Students from the Plantiff School left and Joined the dependent School Plantiff Sue dependent for monitory loss caused but the Court held that Yes, there was monitory loss but non of the Legal Right of the old School were violated and hence. No Question of Damages/compensation

Case Laws:

Facts of the Case:

① A Teacher Setup a School, As a result the Students of the Glouseter Grammer School left and Joined the Rival her School causing financial loss to G. Grammer Schol

Issue of the Case:

① The loss was economical but there was no legal Infringment of Legal Rights.

Judgment to the Case:

The Court held no actionable Tort

key principle

① Economic Competitions causing loss is not Legally wrongful.

Case Law - II

(Assignment - II)

Mugul Steem ship Vs M.C Gragor & Comp.

Difference between Tort & Crime

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Tort	Crime
1. Tort is a civil wrong or private with less Injury/Seriousness.	1. Crime is a criminal or public wrong with more Injury/Seriousness
2. The suit is filed by the Injured person/ him self.	2. The case is brought initiated by the State (or) Prosecution.
3. Compromise is always possible	3. Compromise is not possible.
4. The remedy of Tort is unliquidated damages	4. The remedy is to Punish the Offender/ Convict (or) fine.
5. The Wrong doer pays remedy (or) Compensation to the Injured party ie Monitory Compensation	5. The wrong doer is punishable by the State
6. Tort litigation is ~~Compoundable~~ Compoundable	6. Criminal case are not ~~Compoundable~~ Compoundable except in the case of Section 320 of IPC
7. ~~A person who commits~~ Tort is a Tort feasor.	7. A person who commit Crime is a criminal/ Offendor/ ~~Accused~~

8. Examples:

Trespass, deformation
Negligence, Nuisance.

Distinguish between Tort

Breach of Contract

① It results Breach of Contract (or) Breach of duty undertaken by the parties themself

You ⇌ me
Contract

② In Contract each party owes duty to the other

③ Damages of contracts are Liquidate (fixed) predetermined

④ It provides limited remedy

⑤ Motive is relevent in contract

⑥ Obligation is found on the consent of the party

9. Examples.

Murder, theft, Assault

Breach of Contract a

Tort

① It occurs from the ~~Breach of~~ Such ~~Duties~~ duties which are not undertaken by the part But which are imposed by Law.

② Duties imposed by Law of Torts are not towards any specific Individuals.

③ Damages of torts are unliquidated

④ It provides unlimited remedy.

⑤ Motive is not relavent in tort

⑦ Tort is inflicted against the will of the party

④ When the contract is void there is no question of compensation

example : Minor Contract is void. A minor cannot be held liable for anything

⑤ Justice is only by Compensation, to the victims for the actual loss

Liability

④ Tort - Applies even in cases where a contract is void.

example: Minor bike accident. A minor may be liable for tort

⑤ Justice is by compensation by the victim to the Injury.

The Case Of.

This is an Illeistration to explain the first of the rule viz. A wrongful act is not Converted into a Lawful act by a good motive. In this Case the plantiff The owner of the Co- mines brought an action against the defend- a minor union for indicating its workm- to make the breach of contract of their employment by Ordering them to take extra Holidays. The act of

Negligence

The Negligence is the breach of duty Caused by omission to do Something which a Reasonable man guided by those Consultation which ordinary. Regulate the Conduct of the human affairs would do or doing Something which are cruel which a normal person (man) would not do.

The Negligence has 3 opposed

(1) the State of mind in which it is opposite to Intension.

(2) Careless conduct

(3) The Breach of duty to take care.

Case Law:

(P) Donoghue Vs Stevenson (D)

The case is Landmark. Case English Tort Law decision that establish a Law of negligency

In this case Mrs. Donoghue who became ill after consuming Ginger Beer from a bottle and discovering a decomposed Snail inside. The house of Lords ruled that the manufactures hold a duty of care to the end Consumer even without a direct contract and held liable for harm caused by the defective product.

fact:

Donoghue purchased bottle of Ginger Beer for her wife from a Cafe; The bottle was not been inspected after Donoghue : Some of the ginger Beer. a Decomposed Snail was found in bottle.

and Suffered from Shock and Gastroenteritis as a result. Since Donoghue did not purchase the ginger beer herself they did not Sue under Contract Law instead. brought an action in the Tort of negligence against the manufacture of Stevenson

Issue:

The Legal Issue question Manufacturer owes a duty of care to the consumer. of the product. The case also questioned whether the manufacturer has been neglected by allowing the defect occuring the production of product

Judgment

The case established that the manufacturer have a duty of Care to consumers to ensure their products are safe and it made manufacturer liable for harm caused by their products if there was no direct contract between the manufacturer and the consumer.

Volenty Non-fit Injuria

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In this

According to the principle of Law of Tort when a person Consent to the infliction of some harm upon himself he has no remedy for that if the Plantiff voluntarily agrees to Suffer some harm is not allowed to Complain for that and his Consent Serves as a good defence against him.

Ex: If someone Invites a person to his house keep

Nor a person can Sue the Surgeons after Submitted himself to a Surgical Operation because a person has expressively Consented to this acts. In the Same manner in the deform.

Who augreess to the publication of a matter deformatory of himself.

A player in the game of Cricket / football is deemed to be agreeing to any hurt which may be likely in the normal Course of the game